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[00:08:27] The House will come to order. Members, please take your seats. Head page. The House is now in session. All persons not entitled to privileges of the floor, please retire to the gallery.

[00:08:44] The members will rise and be led in prayer by Pastor Adam Schultz, Good Shepherd Lutheran Church, Lexington, and remain standing for the Pledge of Allegiance to the Flag of the United States of America, which will be led by the Delegate from Alexandria, Delegate Herring. I invite you to pray with me, creator, redeemer, and sustainer of all people and things.

[00:09:05] As we convene this session, we give you thanks for the honor of being gathered here today, Elected delegates, legislative staff, and community advocates, each of us with the privilege and heavy responsibility representing our own constituencies and entrusted as stewards of this commonwealth.

[00:09:24] We ask for your guidance, your wisdom, and your compassion as we embark on this session. Give these delegates a deep sense of responsibility, a broad spirit of understanding, and the courage to defend those in need of support, even when it is difficult.

[00:09:44] When our eyes do not see the gravity of injustice, shake us from our complacency, O Lord. Open our eyes and hearts to the realities of those whose lives are difficult, those fleeing violence in their

homes, those who have suffered the indignity of assaults against their own bodies, those whose bodies are treated as commodities, those who are traumatized, marginalized, vulnerable, or underserved.

[00:10:11] Grant these delegates wisdom to create laws that do not just offer convenience, but justice. not mere policy but equity help us all to build bridges that divide that don't divide to inspire mutual respect to foster inclusion to work in solidarity for the common good of all not just for the benefit of a few may our hearts be broken by what breaks yours and may that conviction drive our work this day and each day hereafter we ask for the strength to be agents of healing compassion

[00:10:49] and true equity. May the decisions made in this chamber leave the Commonwealth of Virginia more

[00:10:55] compassionate, just, and united. Amen. The members will answer the roll call by indicating their

[00:11:32] presence on the electronic voting board. Clerk will close the roll. Mr. Speaker, a quorum is present.

[00:11:47] Assuming to House Rule 3, I have examined and approved the Journal of the House of Delegates for February 4th, 2025. Motions and resolutions under Rule 39 pursuant to the provisions of Rule 40 are now in order. Does the clerk have any announcements or communications? No announcements or communications. Therefore, in this first portion of the morning, our pursuant to House 440, speaker requests that you use. Your request to speak button for the agenda items listed for reference up on the voting board. The delegate from Rockbridge, Delegate McLaughlin.

[00:12:12] Thank you, Mr. Speaker. I rise for an introduction. The delegate has the floor. Thank you, Mr. Speaker. Today's invocation was given by the Reverend Adam Schultz. Not asking him to stand. Reverend Schultz leads the Good Shepherd Lutheran Church in Lexington, Virginia, beautiful Lexington, Virginia. Reverend Schultz is the spiritual counselor at Project Horizon, which is a non-profit human service organization dedicated to reducing domestic, dating, and sexual violence. Again, situated right in Lexington. Adam is one of only a handful of spiritual counselors and chaplains across the nation working to end domestic violence and

[00:12:49] protecting and doing advocacy for our children who become victims of such. He likes to lead with trying to help them with the spiritual trauma that often accompanies the physical and sexual abuse that they might see. He's looking for a more holistic approach to healing. Mr. Speaker, I would ask that we all join in giving him a very warm house welcome. Welcome. Welcome to the Capitol today, and thank you for that beautiful prayer. The delegate from Roanoke City, Delegate

[00:13:25] Rasul. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker. Ladies and gentlemen of the House, I ask the ask Childhood Cancer Foundation to please rise. Today in the gallery, we have advocates from the Ask Childhood Cancer Foundation on Virginia's Childhood Cancer Advocacy Day. They represent the 350 children diagnosed with cancer every year. They come from Carillion's Children's, Children's Hospital of the King's Daughters, Children's Hospital of Richmond, Inova-Shar

[00:14:03] Cancer Institute, and UVA's Children's Hospital. It's a special kind of hurt, Mr. Speaker, to see your child in pain. I remember years ago, we had Libby and Clara were the first group that came to us, and they brought us this book called Chemo Sisters, a book that they wrote together.

[00:14:22] It was wonderful to hear about how they've grown throughout the years. Mr. Speaker, I hope that you can join me in welcoming this very special group of people who represent Virginia's youngest cancer patients, survivors, and families. Welcome. Welcome to the Capitol today. Doug from

[00:14:58] Lunenburg, Delegate Wright. Thank you, Mr. Speaker. Mr. Speaker, I rise for an introduction and a motion. Delegate, ask the floor. Mr. Speaker and ladies and gentlemen of the House, today we have seated in the gallery guests from Hampton-Sydney College, including Dr. Larry Stempert, President, Richard Pantalo, Dean of Students, Owen Williams, Student Body President, Caroline Emmons, co-chair of the 250th Anniversary Committee, and the Honorable Chris Peace, former delegate and

[00:15:37] president of the Council of Independent Colleges in Virginia. They are joining us in celebration of the 250th anniversary of Hampton-Sydney College, and I ask they continue to rise and remain standing as the body joins me in giving them a warm House welcome. Mr. Speaker, I now have a motion.

[00:16:09] Mr. Speaker, I move that the House take up, out of order, House Joint Resolution No. 13 on page 29 of today's calendar. House Joint Resolution No. 13, commending Hampton-Sydney College.

[00:16:27] Mr. Speaker, I move adoption of the resolution. I would like to speak to that motion. Mr. Speaker, ladies and gentlemen, on November 10, 2025, it marks the 250th anniversary of the founding of Hampton-Sydney College.

[00:16:44] among the nation's oldest colleges and the oldest privately chartered college in the southern United States. Hampton-Sydney College was named for John Hampton and Algernon-Sydney, members of the Parliament of England in the 17th century. The Union Theological Seminary and the Medical College of Virginia, which became part of the Virginia Commonwealth University, originated at Hampton-Sydney College. The Union Philanthropic Literary Society, the second oldest college

[00:17:19] debating society in America, whose earliest members included Edward Henry, the eldest son of Patrick Henry, and future president William Henry Harrison, continues to flourish and provide a model of civil discourse at Hampton-Sydney College. Hampton-Sydney College has consistently produced outstanding and consequential leaders and practitioners in such fields as politics, law, medicine, science, business, education, religion, arts and culture, and the military,

[00:17:55] which exemplifies its enduring mission to form good men and good citizens who will lead in support of free and just society in the Commonwealth of Virginia and throughout the United States. Please join me with a final round of applause. Thank you. All those in favor of adopting House Joint Resolution 13 commending Hampton-Signy College shall say aye.

[00:18:27] All those opposed, no. The motion is agreed to. Congratulations. The delegate from Fairfax, Delegate Delaney. Thank you, Mr. Chair. I rise for the purpose of an introduction. The delegate has the floor. Mr. Speaker, I'm sorry.

[00:18:44] Mr. Speaker, today I rise to recognize members of the Virginia Sexual and Domestic Violence Action Alliance, and if you are in the gallery, please rise. These alliance members who make up more than 70 local sexual and domestic violence agencies provide frontline crisis response and prevention programming across the Commonwealth.

[00:19:03] Since 2020, funding for these services from the Federal Victims of Crime Act, known as VOCA, have been cut by 54%, resulting in fewer emergency shelter beds available, waiting lists for trauma

counseling, and in some cases, the elimination of many services altogether. So I want to thank these advocates for their tireless work and ask for us to please give them a warm house welcome.

[00:19:30] Welcome. Welcome to the capitals today. Delegate from Rockingham, Delegate Runyon. Thank you, Mr. Speaker. I rise for the purpose of introduction. Delegate, ask the floor.

[00:19:46] Thank you, Mr. Speaker. Today I'm honored to recognize the Virginia Real Estate Investors Alliance, a statewide organization comprised of 18 local groups representing more than 15,000 members throughout the Commonwealth. The alliance advocates for housing providers by shaping housing, zoning, and regulatory policies that promote a balanced housing system, one that protects property rights, respects tenant rights, and supports access to safe and affordable housing.

[00:20:14] Through education, collaboration, and constructive engagement with policymakers, the Alliance provides a unified voice for housing providers and promotes fair, predictable laws that encourage responsible investment, ethical practices, and long-term housing affordability, while strengthening communities throughout the Commonwealth.

[00:20:34] The Alliance's work is carried out by dedicated volunteers, local leaders, and members from communities across Virginia who give their time and expertise and improve housing outcomes for both residents and housing providers. We thank the Virginia Real Estate Investors Alliance for their ongoing commitment to responsible housing policy and the Commonwealth.

[00:20:55] Please join me in giving them a warm house welcome. Thank you. Welcome. Welcome to the Capitol today. The Delegate from Newport News, Delegate Simons. Mr. Speaker, I rise for an introduction.

[00:21:16] The delegate has the floor. Mr. Speaker, on behalf of Delegate Ward, our proud CNU alumna, I would like to welcome Christopher Newport University to the Capitol today. If they could please stand. Today is their sixth annual Captains in the Capitol Day, where their president, several faculty and staff bring students to Richmond to learn about lawmaking in the Commonwealth.

[00:21:42] I especially enjoyed having the social work students in my office this morning. Be sure to say hello to anyone wearing a CNU blue scarf as you walk the halls. Their legislative reception is tonight at Redbird Social beginning at 5 p.m.

[00:21:57] I hope to see you all there. Please join me in giving the CNU captains a warm house welcome. Welcome.

[00:22:12] Welcome to the Capitol today. Delegate from Winchester, Delegate Wiley. Thank you, Mr. Speaker. Rise for motion. The delegate has the floor. Yes, Mr. Speaker, I'll make a motion that H.R. 72 found on page 64 of today's calendar go by until Friday, February 13th.

[00:22:30] Thank you. Without objection, H.R. 72 on page 64 is by until February 13th. Delegate from Henrico County, Delegate McQuinn. Thank you, Mr. Speaker.

[00:22:45] Mr. Speaker, I rise for a motion. Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, I move that the House take out of order HR 70 on page 64 of today's calendar. Clerk will report a resolution. Page 64, resolution presented, House Resolution 70, celebrating the life of Virginia Mosel Jefferson Tyler.

[00:23:09] Thank you, Mr. Speaker. Mr. Speaker, I move the adoption of the resolution and request to speak to the motion. The delegate has the floor. Thank you. Mr. Speaker and members of the General

Assembly, this resolution honors the life and legacy of Virginia Moselle Jefferson Tyler, a woman remembered for her grace, strength, and deep commitment to family and community.

[00:23:31] She touched many lives through her kindness and quiet leadership, leaving a lasting impact on all who knew her. Mrs. Tyler was the beloved mother-in-law of former Delegate Rosalind Tyler, and her legacy lives on through the family and the community she helped shape. We celebrate her life and the example she set for generations yet to come. So, Mr. Speaker, I move that when we adjourn today, we do it in the name of Virginia Moselle Jefferson Tyler. Thank you, Mr. Speaker.

[00:24:02] The delegate from Henrico moves that the House adopt House Resolution 70 celebrating the life of Virginia Moselle Jefferson Tyler. All those in favor shall please rise. The resolution is agreed to. The delegate from Hanover, Delegate Fowler. Thank you, Mr. Speaker. I rise for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, members of the House, visiting in the gallery are some members from Wins Baptist Church in western Hanover

[00:24:39] County, including Elizabeth Foley, Elizabeth's mother's Judy, and of course, including Mr. Speaker, my bride. And Mr. Speaker, members of the House, you believe in miracles? I do.

[00:24:57] Well, I do, too, Mr. Speaker, and we have one here today. I want to ask Elizabeth to stand up, please. Thank you. Mr. Speaker, member of the House, Elizabeth and Ryan Foley, along with their children, were vacationing on Florida's Gulf Coast.

[00:25:19] They were enjoying those things that families at the beach do, basking in the sun, running on the beach, and swimming in the water. Everything was wonderful, Mr. Speaker, until it wasn't.

[00:25:39] Unfortunately, people enjoying their vacation weren't the only ones in the water, Mr. Speaker. There were also sharks. And in seconds, Elizabeth Foley was fighting for her life. And Mr. Speaker, that's when God showed up.

[00:26:04] A shark zeroed in on Elizabeth, and she fought for her life and her family. In those situations, time seemed to stand still. Family, as well as others, jumped into rescue mode, ended the attack, got to the beach.

[00:26:27] But the damage was done. Elizabeth sustained life-threatening injuries, including the loss of an arm. Mr. Speaker, Elizabeth was bleeding out. And that is when God showed up.

[00:26:54] Thankfully, it just so happened that several vacationing registered nurses were enjoying the beach and immediately jumped into action. Dressing the wounds and stopping the bleeding, the rescue squad then arrived and took over.

[00:27:13] Elizabeth fought through months of medical treatment and came through this crucible like a champ. Mr. Speaker, I hope it will be the pleasure of the House to give Elizabeth Foley a warm House welcome.

[00:27:33] Thank you, Mr. Speaker. Welcome, welcome to the Capitol today.

[00:27:53] The delegate from Prince William, Delegatorian. Thank you, Mr. Speaker. Mr. Speaker, I rise for two motions. The delegate has the floor. Mr. Speaker, I move that House Bill 1313 found on page 38 be re-referred to the House Committee on Appropriations.

[00:28:14] Delegate from Prince William, Delegate Torian moves that HB 1313 found on page 38 be re-referred back to the Committee on Appropriations. All those in favor say aye. All those opposed, no. 1313 is re-referred back to the Committee on Appropriations. And, Mr. Speaker, I move that House Bill 1393, found on page 39 of the calendar, be re-referred to the House Committee on Appropriations.

[00:28:40] Delegate from Prince William, Delegate Torrin moves that House Bill 1393, found on page 39, be re-referred to the Committee on Appropriations. All those in favor say aye. All those opposed no, 1393 is re-referred to the Committee on Appropriations. Thank you. The delegate from Campbell County, Delegate Zaire.

[00:28:56] Thank you, Mr. Speaker. Arise for an introduction. Delegate has the floor. Thank you. Today, we recognize Virginia's homeschooling families and the Home Educators Association of Virginia, known as HEAVE, a statewide member-supported nonprofit founded in 1983.

[00:29:13] And if they're in the gallery, I know they're going to try to be here. If they are here, please stand up. Although legal homeschooling for bona fide religious exemption was introduced in 1976 by a Virginia senator who eventually became Virginia's first black governor, Home education as a means of compulsory attendance was not legalized in Virginia until 1984.

[00:29:36] In 83, a group of moms who eventually became Heave set up a card table right here in the Capitol to begin the homeschooling movement as we know it in Virginia. For more than four decades, families across the Commonwealth have chosen home education as a lawful and respected path for raising and educating their children.

[00:29:55] Today, more than 66,000 students are homeschooled across Virginia, representing one of the largest home education communities in the nation. Homeschooling has grown by leaps and bounds, both in numbers and social acceptance.

[00:30:10] Since the COVID pandemic opened even more parents' eyes to their ability to provide a well-rounded education from home, homeschooling numbers have grown nearly 50%. Heave serves these families year-round By equipping parents with information, training, and support, and by maintaining consistent, constructive presence here in Richmond to monitor legislation and educate policymakers on issues affecting home education.

[00:30:38] In 2013, this body unanimously established February as Home Education Month in Virginia, recognizing the lasting and positive role home education plays across our commonwealth. And today, we are honored to recognize the thousands of Virginia families who are investing daily in the education, character, and future of the next generation.

[00:31:03] Will you please join me in welcoming Heave and Virginia's homeschooling families who are with us today and in thanking them for their dedication to their children and to the future of the Commonwealth. Welcome.

[00:31:25] Welcome to the Capitol today. The Delegate from Chesapeake, Delegate Hayes. Thank you so much, Mr. Speaker. I rise for the purpose of an introduction. The Delegate has the floor. Thank you, Mr. Speaker. Today we have sharing with us representatives from the Boys and Girls Clubs here and there in the gallery.

[00:31:45] I ask that they please stand and be recognized. Mr. Speaker, members of the House visiting us are the clubs from across all of Virginia, including the club in my district, the Boys and Girls Club of Southeastern Virginia. Many of us are familiar with the incredible impact that the Boys and Girls Club have on our youth and the families that they are a part of.

[00:32:09] I personally benefited as a child from Coach Elwood Williams in the Boys and Girls Club in Berkeley. One of the reasons, Mr. Speaker, why I decided to pursue baseball and football because I was playing with Alonzo Mourning in that club.

[00:32:28] Mr. Speaker, in Virginia, Boys and Girls Club provides services to 21,000 school-age youth in 44 cities and 11 military installations. Please join me as we extend to them a warm House welcome.

[00:32:50] Welcome. Welcome to the Capitol today. The delegate from Franklin County, Delegate Davis. Thank you, Mr. Speaker. I rise for a motion. Delegate has the floor. Mr. Speaker, I move that when the House adjourns today, adjourn in the honor and memory of Charlie Poindexter.

[00:33:11] And I'd like to speak to that motion. Duggan has the floor. Mr. Speaker, today I rise with a heavy heart to recognize the life and service of our former colleague, Delegate Charlie Poindexter. Charlie proudly served the people of the Commonwealth in the House of Delegates from 2008 through 2021, representing the 9th District, my district, and dedicating himself to the communities of Franklin, Patrick, and the surrounding counties.

[00:33:39] Before his time in the body, he served his community at the local level and built a life rooted in service, hard work, and deep commitment to Southwest and Southside Virginia values. Charlie was known as a steady voice, thoughtful, principled, and deeply respected of this institution and the people he represented.

[00:34:03] He was someone who believed government should work for the people who sent us here. And he carried that belief with him every single day he served in this chamber. Those who worked with Charlie knew him as a man of faith, family man, and someone who never forgot where he came from.

[00:34:21] Whether it was agricultural, local government, or protecting Virginia's natural resources, Charlie approached every issue with seriousness and integrity. The House of Delegates is better because Charlie Poindexter served here. And the Commonwealth of Virginia is stronger because of his dedication to public service.

[00:34:42] On behalf of this body, I extend our deepest condolences to his wife, his children, his grandchildren, and all those who loved him. We are praying for comfort and peace for his family during this difficult time. Mr. Speaker, Charlie Poindexter lived a life of service to his family, to his faith, to his community, and to the Commonwealth he loved.

[00:35:03] It is only fitting that we pause to recognize that legacy. Mr. Speaker, I ask that the House of Delegates adjourn today in honor and memory of former Delegate Charlie Poindexter. Thank you, Mr. Speaker. Delegate Davis moves that when the House adjourns today, you do so in the honor and memory of the Honorable Charlie Poindexter.

[00:35:23] All those in favor shall rise. The motion is agreed to. The Delegate from Alexandria, Delegate Heron.

[00:35:42] Thank you, Mr. Speaker. I rise for a motion and an introduction. The Delegate has the floor. Thank you, Mr. Speaker. I move that we refer House Bill 44 on page 21 to the Committee on Appropriations.

[00:35:58] Delegate from Alexander Devin Herons moves that we re-refer House Bill 44 found on page 21 to the Committee on Appropriations. All those in favor say aye. All those opposed, no. HB 44 is re-referred to the Committee on Appropriations. Thank you, Mr. Speaker. Now for my introduction.

[00:36:16] Today in the gallery, we have members of the American Association of University Women, Virginia Chapter, and I ask that they stand. Mr. Speaker, for over 400 years, over, I'm sorry, 140 years, the American Association of University Women has been the driving force behind powerful mission, advancing gender equity for women and girls through research, education, and advocacy.

[00:36:41] They have championed efforts to pass the Equal Rights Amendment, protect Title IX, and increase funding for education. Their grassroots advocacy and efforts have generated hundreds of letters to voters, candidate forums, and voter engagement rallies. I hope it will be the will of the body to give them a warm house welcome.

[00:37:04] Welcome. Welcome to the Capitol today. Delegate from Warren County, Delegate Oaks. Thank you, Mr. Speaker. I rise for the purpose of an introduction. Delegate has the floor. Thank you, Mr. Speaker.

[00:37:21] On behalf of myself and Delegate Bill Wiley, today I'd like to introduce the representatives from the top of Virginia Regional Chamber, if they would please stand. The top of Virginia Regional Chamber represents the businesses, entrepreneurs, and employers in Winchester, Clark, and Frederick Counties.

[00:37:40] They are deeply invested in strengthening our local economy and in the communities we are proud to call home. Through their work, they support job creation, workforce development, public policy, and responsible growth. helping ensure that the top of Virginia remains a place where businesses can succeed and families can build their future.

[00:38:00] They're under the dynamic leadership of the CEO, Cynthia Schneider, who was recently honored as the Chamber's Executive of the Year. The Chamber has acted as a driving force to bring people together across our industries and jurisdictions and build the strong partnerships necessary to create real economic opportunity.

[00:38:20] This is a chamber that doesn't just talk the talk. Beyond their countless networking and advocacy events and initiatives, you may remember a few years back when they brought toy cars to the General Assembly labeled I-81 to very much make the case in a memorable way for the critical transportation investments our region depends on.

[00:38:45] We're so grateful for their energy, their leadership, and their unwavering commitment to the prosperity of the top of Virginia. Please join me in welcoming them to the House today. Welcome. Welcome to the Capitol today.

[00:39:08] The delegate from Prince William, Delegate Maldonado. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction and a motion. Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, today I am honored to host and welcome Internet Works for their very first Virginia visit to Lobby Day here at Richmond Capital.

[00:39:29] InterWorks is a newer national trade association representing 28 middle tech companies, businesses that are more established than startups, but significantly smaller and less resourced than the larger technology platforms that we know as big tech. These companies, though, are not something you're not familiar with.

[00:39:45] Mr. Speaker, they are companies like eBay, Reddit, TripAdvisor, Etsy, Dropbox, Indeed, Discord, and it not only provides the voice of middle tech business, but also of our developer and deployer voices. Their membership reflects a diverse group of companies working together to advance responsible tech policy that keeps kids safe online, protects users and consumers of all ages, and supports small businesses and local communities.

[00:40:12] Middle Tech companies build products and services designed to bring people together, foster healthy online conversations, and help small businesses grow, bringing practical, on-the-ground perspective to technology policy. And over the last year, Mr. Speaker, InternetWorks has worked closely with state lawmakers across the country to enact thoughtful legislation that meaningfully improves the experiences of users online.

[00:40:34] And as they meet with members of the body today, I appreciate and look forward to their commitment to authentic and constructive advocacy and well, as well as helping us move positive, healthy, responsible legislative policy in the tech space forward. If you would be so kind as to give them a warm house welcome.

[00:40:54] Thank you. They are watching from another room. They are watching from another room. Welcome. Welcome to the Capitol today. Thank you, Mr. Speaker. I also rise for the purpose of a motion.

[00:41:12] The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, I request that the House take up out of order, H.R. 71, on page 64 of today's calendar, and speaking to that motion. Detective Report of Resolution. House Resolution No. 71, commending Did Lake Incorporated.

[00:41:30] The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, today we honor the 60th anniversary of Did Lake, a nonprofit organization with deep roots in the Commonwealth of Virginia and a longstanding commitment to expanding opportunity for people with disabilities. Founded in 1965 as the Did Lake School for Children with Disabilities, the Manassas-based nonprofit has grown over six decades later into a leader in employment, rehabilitation services, and community inclusion, helping individuals build independence, dignity, and purpose through meaningful work.

[00:42:03] Today, Did Lake employs more than 1,000 individuals with disabilities across contract sites in Virginia, Maryland, and Washington, DC, demonstrating that inclusive employment strengthens not only individuals, but our workforce and local communities as well.

[00:42:20] Did Lake also operates five-day support programs in Virginia that focus on personal growth, skill development, and active community participation, ensuring individuals are supported holistically, both on and off the job. And additionally, Did Lake partners with Virginia businesses by matching referrals from the Department of Aging and Rehabilitative Services with jobs in the community, creating pathways to employment that are responsive to both individual strengths and employer needs.

[00:42:50] Through its emphasis on workforce readiness, employer partnerships, and long-term support, Did Lake has helped generations of Virginians with disabilities move towards greater independence and fuller participation in their communities. And as we mark this 60-year milestone, we recognize Did Lake

not only for its history, but for its continued leadership in building more inclusive, equitable, and opportunity-driven Virginia.

[00:43:13] I hope it will be the will of the body to bring a warm House welcome to them today. Thank you, Mr. Speaker.

[00:43:29] - All those in favor of adopting House Resolution Number 71, commending Did Lake Incorporated, shall say aye. All those opposed, no. The resolution is adopted. The delegate from Richmond County, Delegate Kent.

[00:43:45] Thank you, Mr. Speaker. I rise for a motion and an introduction. The delegate has the floor. Thank you. I move that the House take up out of order House Joint Resolution 108, which is not on today's calendar. Clerk will report a resolution.

[00:44:00] House Joint Resolution No. 108, commending the life of Rebecca Coggin-Hubert. Mr. Speaker, I move adoption of the resolution, and I request to speak to that motion. The delegate has the floor. Thank you, Mr. Speaker. I rise today to honor and recognize the life and service of Rebecca Coggin-Hubert, a devoted public servant and lifelong champion of the town of Warsaw, who passed away almost exactly two months ago.

[00:44:26] Across the Commonwealth, we learn about people who do extraordinary things. However, there are unsung heroes, role models, who don't expect recognition, who don't have biographies written about them or stories of them on TV. but there are numerous leaders who quietly and diligently have resounding change on their communities. Rebecca Hubert is that leader, and her family helped shape the town of Warsaw's history for generations. And when she wasn't working a full-time job or being a mom to two children, she devoted her time and service to her community. Throughout her professional career,

[00:45:05] she was recognized and respected for her integrity, professionalism, and kindness, And she bought that same approach to her work as a public servant. Mrs. Hubert was known for her steady leadership on the Warsaw Planning Commission and then on town council, where she chaired the Finance Committee and the Economic Development and Small Business Loan Committee.

[00:45:24] She helped guide economic development that strengthened the local economy while preserving the town's character and the small town charm that we have today. She promoted and navigated arguably the town's most significant revitalization effort in the town and county's history with countless time and positive energy.

[00:45:45] To quote her obituary, Mr. Speaker, and to quote her, Mrs. Hubert always loved to say, we're proud to know you. And now it is our turn to say we're not only proud to know Rebecca Hubert, but we're proud and grateful of the legacy that you have left and the example that you have made on our community.

[00:46:06] Thank you, Mr. Speaker and House, for the opportunity to recognize this local leader, her impact, and her heart. Mr. Speaker, I move adoption of House Joint Resolution 108. The delegate from Richmond County, Delegate Kent, moves at the House.

[00:46:25] She moves at the House to adopt House Joint Resolution No. 108, celebrating the life of Rebecca Coggin-Hubert. All those in favor shall please rise. The resolution is agreed to.

[00:46:42] Delegate from Herico. I'm sorry, Mr. Speaker, I had an introduction as well. Oh, you got it. You got the cord. Run your house. We're chatty in the Northern Act, Mr. Speaker. I'd like to have an

introduction to welcome to the Capitol today special guests from the town of Warsaw in Richmond County who are in the gallery.

[00:47:02] I'd ask that they all please rise. In addition to the family of Rebecca Coggin Hubert that's joining us online, we would like to welcome colleagues and co-workers from the town of Warsaw and Richmond County who served alongside Mrs. Hubert and knew her both also as a dedicated public servant and a friend.

[00:47:23] They are joining us in town today with local government conferences, working to advance opportunities and innovations to bring back home to Warsaw. Your presence here today, in conjunction with this resolution we just passed, is a powerful reminder of the impact of public service in our community, and we're grateful that you could join the House today.

[00:47:43] I would ask my fellow members to give them a warm House welcome. Welcome. Welcome to the Capitol today. The delegate from Henrico County, Delegate LaVere Bowling.

[00:48:00] Thank you, Mr. Speaker. I rise for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker, members of the House. Today, I have the pleasure of introducing the dedicated leaders and advocates of the Democratic Party of Virginia, and I ask that they please rise. These are folks who stand as true champions of progress and innovation committed to moving our Commonwealth forward.

[00:48:23] They embody resilience, courage, and an unwavering belief in a future where equality, justice, and opportunity are not just ideals, but realities that will reach every community and every Virginian. As we celebrate the hard work that has led us to this moment, we pay tribute to the advocates who stood strong for democracy during the November 2025 election.

[00:48:46] Their tireless efforts ensured that the voices of our communities were heard. Let us draw inspiration from their bravery and vision as we honor those who illuminate the path for a more united Commonwealth. I hope it is the pleasure of the House that we deliver a warm House welcome.

[00:49:10] Welcome. Welcome to the Capitol today. Delegate Fairfax, Delegate Shen. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction.

[00:49:26] The delegate has the floor. Thank you, Mr. Speaker. We have in the gallery with us today a delegation of members from the Virginia Coalition for Human Rights. And if they would please rise. Mr. Speaker, VCHR should be familiar to all of us because they have visited us year in and year out.

[00:49:45] And actually, last year when they were here, I described them as a growing, broad coalition of 21-member organizations, but this year I get to introduce them as a growing and broad coalition of 24-member organizations. And they are an organization and coalition committed to and advocating for human rights and against genocide, especially on behalf of the Palestinian people.

[00:50:07] They are here today, making their voices heard for their core mission of fighting oppression, defending human rights, free speech, including the right to protest and to boycott, as well as academic freedoms. They have stood firmly against discrimination and blatant violations of international law all over the world.

[00:50:22] I hope my colleagues will join me in offering a warm house welcome to the Virginia Coalition for Human Rights. Welcome. Welcome to the Capitol today.

[00:50:39] Delegate from Washington County, Delegate O'Quinn. Thank you, Mr. Speaker. Ross, for the purpose of an introduction. The Delegate has the floor. Thank you, Mr. Speaker. Joining us in the gallery today are representatives from the strong, accountable care community, and I would ask that they please rise. Representing organizations from across Southwest Virginia, STRONG stands for Striving Toward Resilience and Opportunity for the Next Generation.

[00:51:01] This is a coalition that brings public, private, and nonprofit partners together to create brighter futures for children and youth through workforce development, early childhood development, and educational success. So, Mr. Speaker, I would ask that we give our guests a warm house welcome. Thank you.

[00:51:21] Welcome. Welcome to the Capitol today. Delegate from Fairfax, Delegate Sebald. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction. Delegate, ask the floor. Thank you, Mr. Speaker. In the Capitol today, we have members of the Virginia Assisted Living Association who are watching us from House Room 3.

[00:51:43] VALA is a nonprofit dedicated to providing advocacy, communication, education, and other resources regarding the assisted living industry. Many of you have probably seen them advocating in your offices today for their policy priorities and throughout the session.

[00:51:59] Mr. Speaker, I hope we can give Vala a warm house welcome. Welcome. Welcome to the Capitol today. The delegate from Loudoun County, Delegate Singh.

[00:52:16] Mr. Speaker, I rise for the purpose of an introduction. Delegate has the floor. Thank you, Mr. Speaker. I'd like to welcome the Loudoun County Board of Supervisors and ask them to please rise. Mr. Speaker, I'm going to tell everyone the obvious. Loudoun County has great schools, parks, companies, airports, and fantastic people, along with Delegates Reed, Reeser, Martinez, and McAuliffe.

[00:52:41] Please join me in giving the Board of Supervisors a warm House welcome. Welcome. Welcome to the Capitol today. Delegate from Suffolk, Delegate Clark.

[00:52:58] Thank you, Mr. Speaker. I rise for introduction. The delegate has the floor. Mr. Speaker and members of the House, it is a pleasure to welcome members from Suffolk City Council, if they can please rise. They are here on the Capitol today and we appreciate them for taking the time to travel to Richmond and thank them for their continued leadership and service to the residents of the city of Suffolk.

[00:53:19] They are here participating in VML's Local Government Day, advocating on behalf of their constituents, their community, and their local government across the Commonwealth. Mr. Speaker, I hope it will be the will of the body to join me in extending them a warm house welcome. Welcome, welcome to the Capitol today.

[00:53:44] The delegate from Prince William, Delegate Guzman. Thank you, Mr. Speaker Rice, for the purpose of an introduction. The delegate has the floor. Thank you, Mr. Speaker. Today we are joined in the gallery by the Brentsville Civic Association, who have made the trip down from the western side of Prince William County.

[00:54:02] I would invite the members to stand to be recognized. The Civic Association of Brentsville and surrounding areas was formed in 2025 to fill a need for a civic association in the greater Brentsville area.

They promote smart growth principles, advocate for residents' best interests, and provide a unified voice for citizens on issues impacting our community.

[00:54:27] As data centers and transmission lines continue coming to Brentsville, the Civic Association keeps citizens informed. Furthermore, they encourage responsible development and smart growth in Brentsville and the surrounding areas. I would ask members of this body to please join me in giving a warm house welcome to the Bransville Civic Association.

[00:54:49] Welcome. Welcome to the Capitol today. Delegate from Fairfax, Delegate Keyes Gamara. Good morning, Mr. Speaker. I rise for an introduction. The delegate has the floor. Thank you. Mr. Speaker, I am pleased to announce that I had 18 students in my office today.

[00:55:10] I would ask them to rise. They are from the AlphaT Academy, which serves elementary and middle school grades since 1999, seeking to cultivate and nurture a thriving American Muslim identity that balances religious, academic, and cultural knowledge and imparts the importance of civic involvement and charitable work.

[00:55:37] I enjoyed putting all 18 of them in my office today as we talked about the history of the House of Delegates, as well as how we have been here longer than the people down the hall. And they were very attentive, and I am so grateful that they are here.

[00:55:57] I ask you to give them a warm welcome.

[00:56:10] Welcome. Welcome to the Capitol. Pursuant to House Rule 30, the journal shall reflect that the following members are away on pressing personal business and I'm going to leave from today's session. Delegates Franklin of Prince William and Delegate Knight. Clerk shall announce the next order of business. Ms. Speaker, the second portion of the morning, our reserve for announcements of member requests legislation moved from the regular over to uncontested over to the regular.

[00:56:30] There are two. Page three, that third reading, uncontested, Delegate Volavus, House Bill 1342, out of the block over to the regular calendar. and also on page 22 in the House Bills of Second Reading Uncontested Calendar block, Delegate Cohen's House Bill 231 will be discussed in that block, but for tomorrow it will be moved over to the regular calendar after engrossment.

[00:56:56] The request of Delegate Scott of Spotsylvania. The third portion of the morning hour, member requests for legislation to go by for the dance. If such, the motion to effectuate that by the Majority Leader. There are two. Page 24, both of them are on page 24 in the category of House Bill 2nd Regular, Delegate Trans, House Bill 1161, and Delegate McClure's House Bill 524.

[00:57:20] Both of those by for the day at the request of Delegate Trans. Delegate from Alexandria, Delegate Herring. Mr. Speaker, I move that the legislation, as announced by the clerk, go by for the day. Delegate from Alexandria, Delegate Herring, moves the legislation, as announced by the clerk, go by for the day. As many in favor, the motion will say aye. Those opposed, no.

[00:57:37] The motion is agreed to. The clerk shall announce the next autobiography. And, Mr. Speaker, members of the House, fourth and final portion of the morning, I reserve for member requests for points of personal privilege. Kindly use your request to speak button to get into the queue. The delegate from Fairfax, Delegate Sebald. Thank you, Mr. Speaker.

[00:57:52] Mr. Speaker, I rise for a point of personal privilege. The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, as we celebrate Black History Month, I want to reflect on a shameful part of our history that is still visible in the community I represent. It is a history not written in textbooks, but one that is embedded in the original land deeds of my district.

[00:58:13] Many original deeds in Virginia still contain racially restrictive housing covenants. Covenants that were written directly into property records and barred black families from purchasing or occupying homes or designated land in certain neighborhoods.

[00:58:29] I was reminded of this not too long ago while speaking with a neighbor who had been reviewing the paperwork for a family home. Buried in the original deed was language they had never noticed before. Language that made clear that black families were legally prohibited to purchase or occupy that home.

[00:58:49] When he inquired about the language, the attorney said not to worry. The covenant is unenforceable. Unenforceable, yes, but not erased. This history is alive, Mr. Speaker. It is rooted in places we know well and care about deeply.

[00:59:06] When the Supreme Court ruled in Shelley v. Kramer that racially restrictive housing covenants could not be enforced, the law changed, but the history did not disappear. We cannot forget that as a result of these covenants, many families were not just denied access to a home, they were denied the chance to establish strong roots, build generational wealth, and to pass opportunity on to their children.

[00:59:33] This history is deeply important to the work before us now. As this body debates affordability, housing policy and community development, we must remember that we are legislating on top of racist systems that deliberately narrowed access.

[00:59:50] Every decision we make about zoning, about housing supply and about land use determines who gets opportunity and who is left behind. Black History Month asks us not to celebrate progress, but to confront the structures that made that progress necessary.

[01:00:07] Today this legislature has a moral responsibility to confront this history and build a Virginia where every family and every community has a fair chance to put down roots, build stability, and share fully in the promise of this commonwealth.

[01:00:24] I thank you, Mr. Speaker. DELEGATE GARRETT: The delegate from Buckingham, Delegate Garrett.

[01:00:39] DELEGATE GARRETT: Thank you, Mr. Speaker, I rise on the point of personal privilege. DELEGATE GARRETT: Delegate, ask the floor. DELEGATE GARRETT: Thank you, Mr. Speaker. Why would a government wish to disarm law-abiding citizens?

[01:00:56] I asked AI, Mr. Speaker, if the Constitution and the Bill of Rights were reduced to 12-point font single-spaced how many pages they would take up. The answer is 11. And so our founders were brilliant in their brevity, but at last, we torture and misinterpret those words as a result.

[01:01:15] If James Madison wanted to be a little bit more wordy, the Second Amendment wouldn't read, the right of the people to keep and bear arms shall not be infringed. It would read, the right of the people to keep and bear arms to defend themselves from tyranny shall not be infringed. Mr. Speaker, the

government did not give me the right to defend myself, to defend my family, or to defend my freedom. And the government cannot take it away, try though it may.

[01:01:48] I was absolutely awestruck when a prominent religious advocacy organization for the largest Christian faith on earth got behind some of these particular bills. They must be reading a different Bible than me. Luke 22, 36 says, Jesus told the disciples, I'd sell you now if you must sell your cloak and buy a sword. And why? Because he had commanded them to go out and spread the word and the roads were teeming with brigands, murderers, and thieves, and their right to defend themselves in doing that which was right was important even to Christ. Indeed, in the garden, Jesus didn't

[01:02:27] tell Peter to throw away his sword. He told him to put away his sword. And as a guy who goes to Middle East a lot, I know there are people going, ooh, there's Garrett throwing his Christianity at me. The Koran, the Torah, the Talmud, very, very prominent in Sikhism, in Buddhism, in Hinduism is the right of people to defend themselves.

[01:02:54] It boggles the mind, Mr. Speaker, that this party will vote on party lines to eliminate mandatory minimums for rapists and child predators and murderers, and then along the same lines in reverse, vote to make an 80-year-old veteran who shed his blood to defend our nation a criminal because he possesses an 11-round magazine.

[01:03:17] Oh, that'll never happen. He just doesn't need to take it in public. Imagine if there's a fire in Fairfax County, Virginia, and the fire department responding goes in to put out the fire and reveals his 11-round magazine, this man who bled and watched his friends die for this country as a criminal, having never committed a crime in his life because we said so.

[01:03:37] Sadly, those who vote this way either do not understand what the Bill of Rights means or do not care. Mr. Speaker, I'm in the habit of this session of saying things in ways that make some people uncomfortable, so why stop now?

[01:03:58] The history of self-defense is soaked in the blood of innocents. Karate means empty hand in Chinese. Why was the hand empty? Because the government controlled who had the weapons and the people who were oppressed had to find a way to fight back against tyranny.

[01:04:20] Tens and tens of millions of people in the 20th century alone were murdered by their government. Here's the uncomfortable part. Gun control started in the United States with the slave codes.

[01:04:37] You were not allowed to sell a firearm to an African American. You were not allowed to sell a firearm to an indigenous person. Why? Because the real racists were afraid of the wrong people having guns. That's racism, not, oh, you don't like my bill, you're a racist.

[01:04:53] That's history. What's my source? NPR. Interestingly, some of the Democrats who drafted those bills would recognize the playbook we're seeing today from Democrats. And what happens when only the government is armed?

[01:05:10] All too often, Mr. Speaker, it's tyranny. I would wager, and I'm not asking, that you might own a firearm with a magazine with a capacity of greater than 10. That's all. I'm just saying. But when only the government, they say, oh, if guns are outlawed, only outlaws will have guns. Let me tell you who the outlaws are. I spoke to a Christian friend in Syria not long ago who was beside himself because he didn't

know which of his friends had died. And I have friends in Iran who were texting me about tens of thousands of people who were

[01:05:46] murdered by the only people in Iran allowed to own guns this month. The government. And Iran's not the only place. And Syria's not the only place. Nazi Germany, no guns. Soviet Union, no guns, the killing fields of Cambodia.

[01:06:05] Well, those people didn't have any guns. Maoist, China, no guns. The patron of the Senate bill said, hey, man, I was a farmer in this country and blah, blah, blah. You know what? The United States threw off the oppressive yoke of British tyrannical rule a lot sooner than the country that some other people came from because they had guns.

[01:06:28] So why would a government wish to disarm law-abiding citizens? Maybe the government is afraid that the laws that they wish to pass are so horrifically oppressive and freedom-denying that they have cause to be afraid of law-abiding citizens.

[01:06:51] And that's just as our founders would have had it, Mr. Speaker. In closing, I will do something I try not to do too often. I will repeat myself. The government did not give me the right to defend myself, defend my family, or defend my freedom.

[01:07:11] And contrary to what you may think, you can't take it away. Thank you. Delegate from Alexandria, Delegate Herring.

[01:07:28] Thank you, Mr. Speaker. I rise for a motion. Delegate has the floor. Mr. Speaker, I move that the House stand in recess until 1.15. Delegate from Alexandria, Delegate Herring moves that the House stand in recess until 1.15. All those in favor, say aye.

[01:07:43] All those opposed, no. The House is in recess until 1.15 p.m. Mr. Clerk. Ms. Speaker, during the recess, the Democratic caucus will be meeting downstairs. House Room 1.

[01:07:59] In House Room 1. Yes, sir. Okay. That's all.

[01:14:13] The House will come to order.

[01:23:31] The House will be at ease.

[01:37:42] House will come to order. Delegate from Fairfax, Delegate Simon. Mr. Speaker, rise for request. Delegate has the floor. Mr. Speaker, House Bill 559 on page 1 be moved to the regular calendar. House 559 on page 1.

[01:38:00] Without objection, House Bill 559 is moved to the regular calendar.

[01:38:12] House will be at ease. House will come to order. Clerk will call the calendar. Mr. Speaker, the calendar for today, Thursday, February 5th, for the Virginia House of Delegates.

[01:38:31] First category is House Bills on Third Reading, Final Passage, Uncontested Calendar. There are four bills in the block. Page 1 of the printed calendar, if you're following along that way, is out of the block. So the block consists of bills on pages 2 and 3. It is House Bill 861, 887, 940, and House Bill 1039.

[01:38:53] Those are the four bills that are in the block because House Bill 1342 is over to the regular calendar. Shall the bills pass? Clerk will close the roll.

[01:39:15] Ayes 97, noes 0. Ayes 97, noes 0. The bill's passed. Continuing with the calendar, we come to another category. House bills on third reading, regular calendar. 52 bills in third reading, final passage, beginning on the bottom of page 3 of the printing calendar with House Bill 633.

[01:39:34] This legislation relates to the Commission on Electric Utility Regulation name change. Shall the bill pass? Clerk will close the roll.

[01:39:56] Ayes 34, noes 63. Ayes 34, noes 63. The bill fails. Over on page 4, House Bill 791, this legislation relates to charitable gaming, conduct of athletic event drawings.

[01:40:14] Shall the bill pass? Clerk will close the row. Ayes 29, noes 65.

[01:40:30] Ayes 29, noes 65. The bill fails. House Bill 1052 relates to the Board of Pharmacy, membership, registered pharmacy technician. Shall the bill pass? Clerk will close the row.

[01:40:51] Ayes 34, noes 63. Ayes 34, noes 63. The bill fails. House Bill 1377, which would establish a task force to examine higher education at Virginia Military Institute, report. Shall the bill pass? Clerk will close the roll.

[01:41:17] Ayes 71, noes 24. Ayes 71, noes 24, the bill passes. House Bill 649 relates to the removal of certain signs and advertisements placed within the limits of highways, agreements with local governing bodies requirements. Shall the bill pass?

[01:41:37] Clerk will close the roll. Ayes 91, excuse me, Ayes 92, Nose 5. Ayes 92, Nose 5, the bill passes. House Bill 21 relates to firearm industry members, standards of responsible conduct, civil liability.

[01:41:55] Delegate from Chesapeake, Delegate Leftwich. Thank you, Mr. Speaker. Speaking to the bill. Delegate, that's the floor. Thank you, Mr. Speaker. House Bill 21 almost certainly is a violation of the Protection of Lawful Commerce and Arms Act. We are told other jurisdictions have enacted similar legislation.

[01:42:12] However, those jurisdictions, and I highlight New York, have far more specific language for prohibited conduct. Those statutes are not vague. They set clear boundaries. To the contrary, House Bill 21 is ambiguous, vague, and open to unlimited interpretation.

[01:42:31] We understand the goal, end gun sales in Virginia. If it can't be accomplished by legislation, then it will be accomplished by allowing a tsunami of litigation driving firearm stores out of existence. Congress preempted this with the PLCAA.

[01:42:46] I have no doubt this legislation will be challenged and will cost the taxpayers of Virginia millions of dollars with no results. Mr. Speaker, there are better solutions than this legislation that don't involve eliminating a fundamental constitutional right. Thank you, Mr. Speaker.

[01:43:04] Shall the bill pass? Clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35.

[01:43:21] The bill passes. House Bill 34 relates to Virginia Military Forces Sexual Offenses Prevention and Response Program Established Report. the bill passed clerk will close the roll ayes 64 noes 33. ayes 64 noes 33 the bill passes over on page six we continue third reading regular house bill 40 is now before you relating to manufacture import sale transfer or possession of plastic firearms and unfinished frames or

[01:43:56] receivers and unserialized firearms prohibited penalties shall the bill pass clerk will close the roll ayes 63 noes 34. ayes 63 noes 34 the bill passes house bill 93 relates to fire

[01:44:20] firearm transfers to another person from a prohibited person. Shall the bill pass? Clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35. The bill passes. That's bill 110. Now before you relates to firearm in unattended motor vehicle civil penalty. Shall the bill pass?

[01:44:51] Clerk will close the roll. Ayes 62, noes 35. Ayes 62, noes 35. The bill passes. That's bill 126 relates to local, regional, and community correctional facilities access to counsel for inmates.

[01:45:15] Shall the bill pass? Clerk will close the roll. Ayes 89, nos 8. Ayes 89, nos 8.

[01:45:32] The bill passes. Ayes Bill 217 relates to purchase, sale, transfer, et cetera, of assault firearms and certain ammunition feeding devices prohibited penalties. The delegate from Scott County, Delegate Kilgore. Thank you, Mr. Speaker. Speaking to the bill. Delegate on the floor. Thank you, Mr. Speaker.

[01:45:48] Mr. Speaker, this bill is what we call a lawyer's dream. Somebody's going to make a lot of money on this bill because it blatantly defies the Supreme Court president set out in Bruin. Firearm regulations are constitutional only if the government can show they are consistent with a nation's historical tradition of firearm regulation, like going in a courthouse, etc.

[01:46:10] It focuses on text, history, and tradition around the founding era. One of the key phrases in that decision talks about how the Constitution protects weapons in common use for lawful purposes. And, Mr. Speaker, to call these rifles common is an understatement.

[01:46:29] I can think of no fewer than six places I could get one of these rifles within 10 minutes of the Capitol. And I, myself, and others across Virginia own these type of guns, as well as the standard magazines that come with them. Mr. Speaker, there's a significant chance that this wall will generate a precedent that the other side does not want to see.

[01:46:51] A majority opinion holding that not only are these rifles protected under Bruin, but the magazines that feed them are as well. Mr. Speaker, regardless, this bill is unconstitutional under the plain reading of the Supreme Court.

[01:47:08] And Mr. Speaker, I think that this bill will be overturned. Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll.

[01:47:26] Ayes 58, noes 34. Ayes 58, noes 34. The bill passes. Top of page 8, continuing third reading, regular House Bill 229, now before you, relates to weapons, possessions prohibited in a hospital that provides mental health services or developmental services penalty.

[01:47:53] Shall the bill pass? Oh, did I miss 226? I'm sorry, Mr. Speaker, that's my fault. I apologize. Bottom of page 7, I apologize. House Bill 226 relates to County Manager Plan of Government, Independent Policy, Policing Auditor. Shall the bill pass?

[01:48:23] Clerk will close the row. Ayes, 63, noes, 34. Ayes, 63, noes, 34. The bill passed. Now we come to page 8.

[01:48:40] House Bill 229 relates to weapons, possessions prohibited in a hospital that provides mental health services or developmental services penalty. Shall the bill pass? Clerk will close the row.

[01:49:03] Ayes, 63, noes, 34. ayes 63 noes 34 the bill passes house bill 257 relates to comprehensive plans social determinants of health shall the bill pass clerk will close the row ayes 68 noes 30 ayes 68 noes 30 the bill passes house bill 277 relates to a zoning a wireless facility modifications applications

[01:49:42] process. Shall the bill pass? Clerk will close the roll. Ayes 90, no 7, abstentions 1. Ayes 90, no 7, abstentions 1. The bill passes. House bill 286 relates to the Virginia National Guard, power of governor to summon in certain circumstances mobilization under federal authority annual report. Delegate from Rockingham, delegate will. Thank you Mr. Speaker speaking to

[01:50:20] the bill. Delegate has the floor. Thank you Mr. Speaker and ladies and gentlemen of the House. I know I spoke yesterday, and I won't go through all the facts again, but this is our chance to take a step back. Like I asked yesterday, looking forward to today when we vote on this piece of legislation, and the testimony was clear.

[01:50:43] I mean, what we're on the edge of here is basically destroying Virginia National Guard. This is not a political pawn to be used. We need to step back and consider what all, and I know some of the intent, looking at the national level and happenings there.

[01:51:07] Mr. Speaker, this is our National Guard. These are the women and men that protect Virginia, serve Virginia. It's just not in these deployments that we're talking about. They're called upon in national disasters. We've seen them deployed in floods and bad weather events.

[01:51:25] So it's crucial that we protect them and not get caught up in some kind of political gamesmanship. Mr. Speaker, ladies and gentlemen of the House, I'll note that the Senate version was wisely stricken. And I can only hope and guess that the patron realized how serious this bill is and how potentially dangerous it is going forward.

[01:51:53] And so I'm asking the body to vote no. Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll.

[01:52:10] Ayes, 60, noes, 36. Ayes, 60, noes, 36. The bill passes. House Bill 325 relates to the Department of Fire program's mental health awareness training. Shall the bill pass? Clerk will close the row.

[01:52:33] Ayes, 90, noes, 7. Ayes, 90, noes, 7. The bill passes. Over on page 10, printed calendar following along that way, House Bill 388. Now, before you, relates to powers of service districts, control of invasive plants.

[01:52:49] Shall the bill pass? Clerk will close the row. Ayes, 90, noes, 8.

[01:53:05] Ayes 90, Nose 8, the bill passes. House Bill 553 relates to the Department of Corrections, Language Services for Offenders. Shall the bill pass? Clerk will close the roll.

[01:53:27] Ayes 68, Nose 30. Ayes 68, Nose 30, the bill passes. House Bill 626 relates to carrying a firearm or explosive material within Capitol Square or a building owned or leased by the Commonwealth, exemptions, public institutions for higher education penalty.

[01:53:43] Shall the bill pass? Clerk will close the roll. Ayes, 63, noes 35.

[01:54:00] Ayes, 63, noes 35. The bill passes. House Bill 711 relates to local regulation of solar facilities, special exceptions. Shall the bill pass? Clerk will close the roll.

[01:54:23] Ayes, 63, noes 33. Ayes, 63, noes 33. The bill passes. House Bill 802 relates to vacant building registration, registered agents. Shall the bill pass? Clerk will close the roll.

[01:54:46] Ayes, 76, noes 22. Ayes 76, noes 22. The bill passes. House Bill 806 relates to Industrial Development Authority's housing. Shall the bill pass? Clerk will close the roll.

[01:55:11] Ayes 85, noes 12. Ayes 85, noes 12. The bill passes. Page 11, excuse me, page 12. House Bill 867 relates to Affordable Housing, Local Zoning Ordinance Authority. Shall the bill pass? Clerk will close the roll.

[01:55:36] Ayes 67, noes. Ayes 68, noes 30. House Bill 871 relates to a storage of firearms in a residence where a minor or person prohibited from possessing a firearm is present penalty.

[01:55:58] Delegate from Campbell County. Delegate is there. Mr. Speaker, speaking to the bill. Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, this bill is the embodiment of good intentions colliding with reality. Nobody wants young children or those who are not legally able to possess firearms to have them.

[01:56:13] We agree on that. What we disagree with is the fact that this bill has no escape hatch for emergencies. As we asked on the floor yesterday, what happens when a competent minor who's almost an adult uses a firearm in the home to defend themselves?

[01:56:29] Is there any sort of affirmative defense? No, there isn't. If a minor uses a firearm to defend themselves in their home, the owner of that firearm is guilty under this law. Doesn't matter if the minor saved himself or herself or her siblings from being raped or murdered, or if the Commonwealth's attorney holds that the shooting was not only justified but appropriate under Virginia law, this bill turns that act of self-defense into a prosecutable act.

[01:56:59] That leaves our sons and daughters in an awful place. Do I fight back and protect myself, or do I send mom and dad to jail? That's wrong, Mr. Speaker. Again, there are ways to fix this legislation, but this bill isn't about working with stakeholders to solve a problem.

[01:57:17] It's about making people who don't like guns feel better and sticking it to those icky people who like to exercise their constitutional rights. I hope and pray I'm wrong about what this bill will do, but I don't think I am. But it doesn't stop there.

[01:57:35] This bill asks one question of every gun owner in Virginia with a child or prohibited person in the home. How much money do you have? The answer determines which of four outcomes this bill assigns to you. If you can afford a biometric safe, several hundred dollars for a reliable one, you keep a loaded firearm and comply with the law.

[01:57:58] If you can only afford a basic lockbox, you keep an unloaded firearm. If you can't afford either, you're a class four misdemeanor criminal in your own home. And if you can't accept that risk, you don't have a firearm at all.

[01:58:16] The sorting mechanism here is not safety, it's not responsibility, it's money. Some will point to the tax credit that delegates Lopez and Freitas work together on, two members not exactly known for common ground.

[01:58:33] Ha! Yeah. But a tax credit requires you to have the money to buy the safe first. Are biometric safes helpful to have to store firearms? Sure. But there are other ways of accomplishing safe storage of firearms.

[01:58:50] I would ask my colleagues to consider what it looks like for a family that doesn't have enough disposable income to afford one. Patrons would say, don't worry. The fine is only $250. Mr. Speaker, I've heard a lot this session about costs that are not a big deal.

[01:59:09] A little cost here, a little increase there. It's all in the name of making life more affordable. Now we're going to tell a working family that $250 for not buying equipment they couldn't afford is not a big deal either. And it is not just the fine.

[01:59:27] It's a criminal conviction that follows them to every job interview and every housing application. Here's what troubles me most. The patrons say this bill protects children. Well, the family that can afford the safe will be fine.

[01:59:44] Their children are already in a more stable, better resourced home. The family that cannot comply, those parents now face prosecution, increased police engagement, and the financial strain of fines pulling resources from everything else their children need.

[02:00:00] Those are the children most in need of protection, and this bill burdens them the most. We don't make Virginia's children safer by making criminals of their parents. I want to hope and think that I'm wrong about what this bill will do, but I know that I'm not, and that's a tragedy.

[02:00:22] Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll.

[02:00:44] Ayes, 60, nos, 37. Ayes, 60, nos, 37. The bill passes. House Bill 876 relates to zoning, wireless facilities, temporary support structure.

[02:01:00] Shall the bill pass? Clerk will close the roll. Ayes 92, no's 4, abstentions 1.

[02:01:17] Ayes 92, no's 4, abstentions 1. The bill passes. House Bill 888 relates to minimum off-street parking requirements in certain areas. Shall the bill pass? Clerk will close the roll.

[02:01:41] Ayes 61, no's 37. Ayes 61, no's 37. The bill passes. House bill 891 relates to siting of battery energy storage projects, commercial solar photovoltaic generation facilities, permitted accessory use. Shall the bill pass?

[02:02:03] Ayes 69, ayes 70, noes 28. Ayes 70, noes 28. The bill passes. House bill 1011 relates to compost and other products containing organic soil amendments infrastructure.

[02:02:21] Department of Environmental Quality Tax Policy Options for Reforming the Litter Tax Study Expanded Civil Penalty. Shall the bill pass? Clerk will close the row.

[02:02:42] Ayes 69, noes 28. Ayes 69, noes 28. The bill passes. We're on page 14, continuing House Bill's third reading regular. House Bill 1130 relates to workforce housing for employees of a locality or school board lease of surplus property.

[02:03:00] Shall the bill pass? Clerk will close the row. Ayes 73, noes 24. Ayes 73, noes 24. The bill passes.

[02:03:17] House Bill 1144 relates to water and sewer connection fees, first-time homebuyers, affordable housing. Shall the bill pass? Clerk will close the roll.

[02:03:36] Ayes 64, noes 34. Ayes 64, noes 34. The bill passes. House Bill 1279 relates to affordable housing, religious organizations, and other non-profit tax-exempt properties. Shall the bill pass? Clerk will close the roll.

[02:04:02] Ayes, 60, noes, 36. Ayes, 60, noes, 36. House Bill 1404 relates to local governing bodies, appointments of youth representative. Shall the bill pass? Clerk will close the row.

[02:04:27] Ayes, 65, noes, 33. Ayes, 65, noes, 33. The bill passes. House Bill 177 relates to fee for passing bad checks to localities, payment order not paid by recipient. Shall the bill pass?

[02:04:42] Clerk will close the row. Ayes 94, Nose 4.

[02:04:59] Ayes 94, Nose 4, the bill passes. House Bill 196 relates to Virginia Residential Development Infrastructure Pilot Program established. Sunset. Shall the bill pass? Clerk will close the roll.

[02:05:22] Ayes 92, Nose 6. Ayes 92, Nose 6, the bill passes. From page 16, we come to House Bill 296, which relates to state correctional facilities, visitation policies. Report. Shall the bill pass? Clerk will close the roll.

[02:05:48] Ayes 95, Nose 3. House Bill 682 relates to Fire Programs Fund, aid to localities, redistribution of funds. Delegate from Fairfax, Delegate Simon.

[02:06:05] Mr. Speaker, speaking of the bill. Delegate has the floor. Mr. Speaker, I know this bill seems like it's for a good cause, but I've noticed some problems with it, and I don't think it's quite ready for prime time, so I hope the numbers will vote no. Shall the bill pass? Clerk will close the call.

[02:06:27] Ayes 33, noes 65. Ayes 33, noes 65, the bill fails. House Bill 683 relates to solar interconnection grant program established. Report sunset. Shall the bill pass? Clerk will close the row.

[02:06:52] Ayes 85, noes 13. Ayes 85, noes 13. The bill passes. House Bill 799 relates to power transformer manufacturing grant fund. Shall the bill pass? Clerk will close the row.

[02:07:15] Ayes 93, noes 4. Ayes 93, noes 4. The bill passes. House Bill 800 relates to Active Pharmaceutical Ingredient Manufacturing Grant Fund. Shall the bill pass? Clerk will close the row.

[02:07:37] Ayes 94, no's 3. Ayes 94, no's 3. The bill passes. House Bill 820 relates to Virginia Housing Revolving Loan Fund established. Report. Shall the bill pass? Clerk will close the row.

[02:08:01] Ayes 90, no's 6. Ayes 90, no's 6. The bill passes. Over on page 18, we come to House Bill 857, which relates to Home Electronic Incarceration Program. Shall the bill pass? Clerk will close the row.

[02:08:24] Ayes 93, no's 5. Ayes 93, no's 5. The bill passes. House Bill 882 relates to Innovative Internship Fund and Program, Local Government Employers, and Matching Funds. Shall the bill pass? Clerk will close the row.

[02:08:50] Ayes 92, no's 5. Ayes 92, no's 5. The bill passes. House Bill 1053 relates to Go Virginia grants matching funds. Delegate from Fairfax, Delegate Simon. Mr. Speaker, speaking of the bill. Delegate on the floor. Mr. Speaker, I noticed that the fiscal impact on here says it's still preliminary.

[02:09:06] I'm sure that there is a well-intentioned bill, but I'm afraid of the unintended consequences, so I hope the members will vote no. Shall the bill pass? Speaker. The delegate from Scott County, Delegate Kilgore. Mr. Speaker, I know where this is going, but let me tell you what this bill does. It allows the Tobacco Commission to match Go Virginia grants in the western part of the state.

[02:09:28] This has been good to close a lot of the Go Virginia, to do a lot of projects in the tobacco region because we can use the Go Virginia money and the Tobacco Commission money to match those grants and create more opportunities.

[02:09:44] So that's what the bill does. I know where it's going, but I just want to let you know what you're voting no on. shall the bill pass clerk will close the row eyes 33 no 64 eyes 33 no 64 the bill fails house bill 1076 relates to pharmaceutical substance manufacturing grant fund the delegate for buckingham delegate garrett mr speaker i actually had that button pressed to speak to the last bill

[02:10:23] so i'm sure i'll get an opportunity to speak to that at some point shall the bill pass clerk will close the row. Ayes 92, noes 5. Ayes 92, noes 5. The bill passes. House Bill 1138 relates to economic development incentives, wage requirements. Delegate from Fairfax, Delegate Simon. Mr.

[02:10:54] Speaker, speaking to the bill. Delegate at the floor. Mr. Speaker, I think this bill again is not quite ready. I hope that the members will vote no on 1138. Shall the bill pass? Clerk will close the role. Ayes 33, noes 65. Ayes 33, noes 65. The bill fails. House Bill 1221 relates to public institutions of higher education, financial aid review, and consolidation, Virginia guaranteed assistance program and fund, Virginia Commonwealth Award established. Work group report. Shall the

[02:11:32] bill pass? Clerk will close the role. Ayes 91, noes 6. Ayes 91, noes 6. The bill passes. Over on page 20, Printing calendar, third reading regularly, come to House Bill 1227, which relates to private activity bonds, allocation of state sealing.

[02:12:05] Shall the bill pass? Clerk will close the roll. Ayes 92, no 6.

[02:12:22] Ayes 92, no 6. The bill passes. House Bill 1300 relates to the purchase of handguns or other weapons of certain officers, Department of State Police. Delegate from Fairfax, Delegate Simon. Mr. Speaker, I rise for a motion. Delegate has the floor. Mr. Speaker, I move that House Bill 1300 be re-referred to the Committee on Public Safety.

[02:12:37] Delicator from Fairfax, Delicator Simon moves that House Bill 1300 be re-referred to the Committee on Public Safety. All those in favor, say aye. Aye. All those opposed, no. The motion is agreed to. Mr. Speaker, returning. Eyes and nays. Y'all want eyes and nays?

[02:12:54] Y'all got to either see it. All right. Eyes and nays. The clerk will open the roll for a motion to re-refer HB 1300 back to the Committee on Public Safety.

[02:13:32] Clerk, close the roll.

[02:13:48] Ayes. I-63, no's 34. I-63, no's 34. House Bill 1300 is re-referred to the Committee on Public Safety. And then going back to page 1, picking up this legislation on page 1, House Bill 559, now before you, relates to Driver Training School and Driver Training Instructors Standards Discipline Report.

[02:14:09] Delegate from Fairfax, Delegate Simon. Mr. Speaker, I move this one to the regular calendar because I've got some concerns about it. I hope that we'll all vote no. Thank you. Mr. Speaker, speaking to the bill. Mr. Speaker, speaking to the bill, a lot of red on the board today, and that's okay.

[02:14:28] But before you throw up all reds on this, I just want to make sure you know what you're voting for, because you tend not to read your bills. So this one right here says that the commissioner shall prohibit the employment of any instructor, that's a teacher, of a driver education course, If such instructor has been convicted of a felony in violation of a whole bunch of numbers.

[02:14:52] I hate code sections like that, so let me tell you exactly what the numbers mean. Abduction with intent to defile for prostitution, child, or I don't even know what that word means. Rape, carnal knowledge of 12 of a child, 13 to 15. Carnal knowledge by custodian or a teacher.

[02:15:09] Forcible sodomy, object sexual penetration, aggravated sexual battery. Attempted rape, sodomy, sexual batterity, taking indecent liberties with children, crimes against nature, which means sodomy with minors, incest, taking indecent liberties with child by person in custodial relationship, taking indecent liberties with child by person who is less than 18, abuse and neglect of children, which means felony sexual abuse, production, distribution, possession with intent to distribute child pornography.

[02:15:40] That's what you're voting to allow truck drivers in the Commonwealth to still have a CDL, even though they're convicted of one of those felonies. Now, let me tell you why that matters, because according to the Polaris Project, which is the biggest nonprofit organization dedicated to ending human trafficking and modern day slavery, says that 82 percent of respondents were trafficked from the transportation industry.

[02:16:10] Just want you to know that. Thank you, Mr. Speaker.

[02:16:12] Delegate from Roanoke City, Delegate Rasool. Mr. Speaker, I rise for motion. Delegate has the floor. Mr. Speaker, I move that we re-refer House Bill 559 to the Committee on Transportation. Delegate Rasool moves that we re-refer House Bill 559 back to the Committee on Transportation. All those in favor say aye. All those opposed no. HB5. Okay, good. All right. Madam Clerk, can you open the roll up to re-refer HB559 back to the Committee on Transportation?

[02:16:52] We apologize. You know what you got to do. Every day. Every day. Every day. Clerk will close the roll.

[02:17:13] Ayes. Excuse me. Ayes 63, noes 35. Ayes 63, noes 35. The motion to re-refer House Bill 559 to transportation passes. And going over to page three of the Printing Calendar, the last bill in this category, House Bill 1342, which relates to, which would provide a charter for the city of Fairfax relating to city elections powers.

[02:17:41] Shall the bill pass? Close the roll.

[02:17:59] Ayes 89, nos 9. Ayes 89, nos 9. The bill passes. Mr. Speaker, members of the House, new category, House bills on second reading, uncontested federal bills in the uncontested second reading calendar.

[02:18:21] They begin with bottom of page 20, if you're following along that way. House Bill 18, now before you, establishes the Employee Child Care Assistance Program. This legislation is working on committee appropriations with amendments. The delegate from Fairfax, Delegate Simon. Mr. Speaker, I have a motion, or a request, rather.

[02:18:38] Delegate, on the floor. Can House Bill 584 on page 23, House Bill 584 on page 23, and House Bill 653 on page 28 go to the regular calendar? Without objection, House Bill 584 and 653, counts on pages 23 and 28 respectively, will go to the regular calendar.

[02:19:01] Mr. Clerk, did you pronounce the bill? No, so therefore, that's fine, we'll make that adjustment when we come to those. So now, still before you, getting this new category, second read, uncontested calendar of House Bill 18, establishing the Employee Child Care Assistance Program by Delegate McClure, Legislative Support Committee on Appropriations with Amendments.

[02:19:20] Delegate from Arlington, Delegate McClure. Thank you, Mr. Speaker. Mr. Speaker, I move that the House adopt the committee amendments. Shall the amendment be agreed to? All those in favor say aye. All those opposed, no. The amendment is agreed to. Thank you, Mr. Speaker. Mr. Speaker, HB 18 would establish the Employee Child Care Assistance Program to provide the framework and opportunity for Virginia to build its own model to incentivize employers to contribute to the child care costs of their employees.

[02:19:43] HB 18 would create a practical shared responsibility approach to child care affordability by creating a public-private partnership to nurture and contribute to the success of Virginia's early learners. Mr. Speaker, I move that the bill be engrossed and passed on to its third reading. Continuing with the block, therefore, over on page 21, House Bill 44 has been re-referred, as has House Bill 231, excuse me, House Bill 231 is now before you.

[02:20:15] So that is legislation to amend and reenact several sections of code repeal, another all relating to Autism Advisory Council, name change, membership, staffing, powers and duties, legislation on rules, amendment nature, substitute, and substitute reported from the Committee on Appropriations.

[02:20:31] Delicate from Fairfax, Delicate Cohen. Thank you very much, Mr. Speaker. I'd first ask that we move the substitute. Shall substitute be agreed to? All those in favor say aye. All those opposed no? Substitute is agreed to. Thank you, Mr. Speaker. House Bill 231, as substituted, takes the current Autism Advisory Council, reclassifies it as the Autism Commission, and repeals the sunset date of July 1st, 2027, establishing it as a permanent commission with the charge of promoting coordination of services and resources among agencies involved in the delivery of services to Virginians with autism spectrum disorders and other developmental disabilities.

[02:21:06] I hope it is the will of the body to engross the bill and pass it on to its third reading.

[02:21:22] Mr. Speaker, members of the House, continuing, therefore, with the block 231, which is dispensed with, so therefore now come to House Bill 255, which is legislation to amend the Code of Virginia related to interstate compact for school psychologists, membership of the Commonwealth, this Legislative Support Committee on Education.

[02:21:44] This bill's patron by Delegate Glass, House Bill 255 at the bottom of page 22. The delegate from Norfolk, Delegate Glass. Gratitude, Mr. Speaker. House Bill 255 enters Virginia into an interstate compact for child psychologists.

[02:22:01] I move the help of the will of the body to engross the bill and pass it on to its third reading. House Bill 584 is out of the block, over to the regulars. So the last bill in the block, uncontested, second reading is House Bill 877.

[02:22:20] This legislation seems to amend and reenact several sections of the Code of Virginia, all related to high school students, post-secondary opportunities, independent dual enrollment, transferable meta-major associate degrees. Legislation report, committee on education. Delegate from Roanoke, Delegate Rasul.

[02:22:35] Thank you, Mr. Speaker, ladies and gentlemen of the House. House Bill 877 provides opportunities for what we call transferable meta-majors to get more pathways, reduce college debt and hopefully reduce some frustration for families. I hope it would be the pleasure of the body to engross the bill and pass it on to his third reading.

[02:22:51] Shall the bills be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. All right, new category, Mr. Speaker, members of the House, House bills, second reading, regular calendar, several bills in this category.

[02:23:11] Page 24, House Bill 1161 is by for the day. House Bill 524 is by for the day. Therefore, the first bill in this new category before you is House Bill 1395, Delegate Converse Fowler. This is legislation to amend and reenact Section of the Code of Virginia relating to prohibiting loitering, age restrictions on trick-or-treating.

[02:23:32] Legislation is reported on counties, cities, and towns with an amendment. Delegate from Virginia Beach, Delegate Converse Fowler. Thank you, Mr. Speaker. Mr. Speaker, I'd first like to move the committee amendment. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. the committee amendment is agreed to. Mr. Speaker, HB 1395 seeks to allow children across the Commonwealth, like our pages, to have a little longer to go trick-or-treating. HB 1395 prohibits localities from putting age restrictions for the community-based event known as trick-or-treating.

[02:24:04] Mr. Speaker, I hope that it is the will of the body to let the kids be kids and engross the bill and pass it on to its third reading. Should a bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. House Bill 16 now before you seeks to amend and reenact sections code of Virginia relating to community service work in lieu of payment of fines and costs, work performed while incarcerated.

[02:24:26] Legislation was reported for the committee for courts of justice with an amendment and subsequently reported for the committee on appropriations. Delegate from Newport News, Delegate Price. Yes, Mr. Speaker, I move the committee amendment. Shall the committee amendment be agreed to? All those in favor say aye. Aye. All those opposed, no. The committee amendment is agreed to.

[02:24:41] Thank you. Mr. Speaker, House Bill 16 would allow incarcerated people to offset court debt through community service and work while incarcerated. As you'll remember, before 2020, only service done before or after incarceration could be used toward fees and fines, and we added that service during incarceration could count as well. Since then, we've noticed that this has not been being applied uniformly across the Commonwealth, so this bill clarifies the process, setting clear parameters for the courts to count this service and work.

[02:25:13] Not only does the service and work help keep the institutions running, but the credit can also help incarcerated people work off their debt. This bill also clarifies the work on-site or off-site can count, that this is for DOC facilities and local and regional jails, and ask DOC to track the hours and make the accounting available upon request.

[02:25:34] The amendment clarifies that this applies to work and service performed on 2023 and on for accounting purposes. In order to make this process clearer and more uniform across the Commonwealth, I hope it would be the will of the body to engross the bill and pass it on to its third reading.

[02:25:50] Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 17, a different bill, same page from this legislation to instrument and reenact two sections. the Code of Virginia relating to fines, costs, forfeitures, penalties, and restitution, collection fees, assessment against incarcerated defendant, deferred

payment agreement, legislation board committee for courts of justice with amendments, and then subsequently reported as well from the Committee on Appropriations.

[02:26:17] Delegate from Newport News, Delegate Price. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendments be agreed to? All those in favor say aye. All those opposed, no. The committee amendments are agreed to. Now with the amendments, House Bill 17 puts collection fees on the same 180-day timeline and its interest. This does not reduce the amount owed but allows 180 days for someone who has been released to get a job, find housing, and earn the money due before being sent to collections.

[02:26:41] The amendment clarifies the charges must be from the same day and in the same jurisdiction for the 180 days to count. I hope it will be the will of the body to engross the bill and pass it on to its third reading. So many words. Shall the bill be engrossed and pass the third reading? All those in favor say aye. Those opposed no. Bill's engrossed and passed the third reading. We now come to House House Bill 211, this legislation will require the Head Start State Collaboration Office at the Department of Education to develop and recommend to the General Assembly a plan for universal access to Head Start programs for eligible families.

[02:27:13] Legislation will require the Committee on Education with Amendment Nature Substitute. Delegate from Chesterfield, Delegate Gartner. Thank you, Mr. Speaker. I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. The committee substitute is agreed to. Thank you, Mr. Speaker. House Bill 211 directs the Head Start Collaboration Office and the Department of Education to develop a report summarizing the state of Head Start and early Head Start in the Commonwealth by 1201-26.

[02:27:43] This is essential information to have in order to strengthen the delivery of Head Start services and address any impending federal shortfalls in funding and resources. Mr. Speaker, I move that the bill be engrossed and passes third reading.

[02:28:00] Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 263 now before you seeks to amend the Code of Virginia. You're landing the superintendent of public instruction, employment of certified school library specialists. Legislation reported from the Committee on Education on January 28th.

[02:28:18] Subject reported by the Committee on Appropriations. Delegate from Newport News, Delegate Simon. Thank you, Mr. Speaker. Mr. Speaker, HB 263 requires the Superintendent of Public Instruction to employ at least one certified school library specialist within the Department of Education to provide leadership and technical assistance to support student literacy and achievement statewide.

[02:28:39] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Mr. Speaker, next up is, it was already on the regular calendar, so next up on page 28 is House Bill 653, which seeks to amend and reenact Section of the Code of Virginia related to excused student absences for visitation of immediate family members, active duty military, scheduled for deployment, on leave from deployment, or returning from deployment outside the United States.

[02:29:16] It's reported for the Committee on Education with Amendment and Nature Substitute. The Delegate from Richmond County, Delegate Kent. Mr. Speaker, I'd like to move the committee substitute. Shall the committee substitute be agreed to? All those in favor, say aye. All those opposed, no. The committee substitute is agreed to. House Bill 653 gives five excused absences to a student whose family member is deployed on leave from or returning from a military deployment outside of the United States.

[02:29:41] Excused absences will not be included in calculating chronic absenteeism. I hope it's the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 665 now before you, seeks to amend and reenact sections.

[02:30:01] Dakota, Virginia, all relating to financial institutions and services, virtual currency, kiosk operators, license required penalties. Legislation report committee on communications, technology, and innovation with amendment nature substitute. Delegate from Prince William, Delegate Maldonado. Thank you, Mr. Speaker. Mr. Speaker, I move that we adopt the committee substitute.

[02:30:18] Shall the committee substitute be agreed to? Others in favor say aye. Others oppose no. The committee substitute is agreed to. Thank you, Mr. Speaker. This substitute aligns the bill with the Senate version and clarifies the definition of a new user. It strengthens transaction limits and adjusts the fee cap to support implementation. More broadly, HB665 establishes a regulatory framework for virtual currency kiosks or crypto kiosks that look like ATMs.

[02:30:42] They're increasingly being used in fraud schemes. These kiosks look like bank ATMs but are not federally insured and allow users to transfer money in ways that are difficult to trace, making them attractive for tools for scammers. The bill requires state licensure, reporting, identity verification, transaction limits, and a brief hold for new users and consumer warnings to help prevent fraud, limit losses when scams occur.

[02:31:05] Mr. Speaker, I move that the bill be engrossed and passed to its third reading. Thank you. Shall the bill be engrossed and passed to its third reading? All those in favor, say aye. Aye. All those opposed, no. The bill is engrossed and passed to its third reading. Ms. Speaker, members of the House, continuing with second reading, Regularly come to House Bill 798, which seeks to amend and reenact sections of the Code of Virginia relating to the Virginia Disposition of Unclaimed Property Act Digital Financial Assets Legislation Report Committee on Communications, Technology, and Innovation with Remembrance Substitute.

[02:31:36] From Chesapeake, Delegate Hayes. Thank you, Mr. Speaker. I move the committee substitute. Shall the committee substitute be agreed to, all those in favor say aye, all those opposed no, the committee substitute is agreed to. Thank you so much, Mr. Speaker. Mr. Speaker, the proposed legislation creates a statutory framework for the treatment of disposition of unclaimed digital assets as a result of the legislation the Department of Treasury would have the ability to establish a digital wallet for the Commonwealth and I ask that we engrossed the bill and pass it on to its third reading shall the bill be engrossed and passed the third reading all those in

[02:32:16] favor say aye all those opposed no the bills engrossed and passed the third top of page 29 we come to House Bill 1037 legislation amend the Code of Virginia relating to the Board of Education, instructional materials on climate change and environmental literacy, model policies and procedures for selection. Legislation report committee on education.

[02:32:34] Thank you, Mr. Speaker. HB 1037 simply tasked the Department of Education with creating materials for local school boards relating to environmental education and literacy. I hope it will be the will of the body to engross the bill and pass it to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye.

[02:32:52] All those opposed, no. The bill is engrossed and passed the third reading. House Bill 1153 seeks to amend and reenact sections of the code of Virginia as well as the acts of assembly of 2024 relating to the community builders pilot program. Name change, sunset repeal, statewide demonstration model site.

[02:33:07] Legislation was reported to the Committee on Appropriations. Thank you Mr. Speaker, House Bill 1153. Now the community builders project that's in Roanoke City and Petersburg city public schools will no longer be a pilot. It will actually be a demonstration project that will be permanently in the code as we move forward.

[02:33:26] This has helped to reduce out-of-school suspensions by 65% and the number of juvenile gun violence offenders by over 90% by those in this cohort. I hope it would be the pleasure of the body to engross the bill and pass it on to his third reading. Should the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no.

[02:33:41] The bill is engrossed and passed the third reading. And, Mr. Speaker, we're finally returning several pages back to page 23, if you're following that way. House bill 584, now before you, seeks to amend and reenact section of the Code of Virginia relating to the Western Virginia Public Education Consortium, governance, funding, duties.

[02:33:58] Legislation report committee on appropriations with amendments. Delegate from Giles County, Delegate Ballard. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendments be agreed to? All those in favor say aye. Aye. All those opposed, no. The committee amendments agree to. Thank you, Mr. Speaker. Speaking to, the bill is amended. The delegate has the floor.

[02:34:13] Thank you, Mr. Speaker. Members of the House, HB 584 is amended. Updates the code section whereby the Western Virginia Public Education Consortium was established to fix references to former House and Senate districts and to recognize the merger of Covington and Allegheny County schools into the Allegheny Highlands Consolidated School Division.

[02:34:31] I hope it's the pleasure of the House to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Mr. Speaker, that completes that category. Commending resolutions laid on the Speaker's table has already been dispensed with that measure, so therefore there is no further business before the House.

[02:34:50] Per House Rule 51, the House has returned to the morning hour. Does the Clerk have any additional announcements on communication? Mr. Speaker, no communication. It's just simply looking at the meeting schedule, which is available online this afternoon on Day 23 here of our 60 days together. We have the Committee on General Laws is meeting a half hour after adjournment.

[02:35:10] They'll be in House Committee Room B, and then once the full committee's finished, two of its subcommittees will work on their dockets. General Laws, Professions, Occupations, Administrative

Process will meet upon adjournment of the full committee, and then once that subcommittee's done, General Laws, Housing, and Consumer Protection Subcommittee will meet.

[02:35:26] That's all on the second floor over in the GAB, House Committee Room B, approximately around 3 o'clock they'll start. Likewise, Committee on Labor and Commerce will be meeting. They'll be down in the lower level of the GAB, House Committee Room A, once the full Labor and Commerce Committee is finished.

[02:35:41] Then its subcommittee number two will meet upon adjournment of the full committee. And then its subcommittee number three will meet. All that will be in A, so Labor and Commerce, and then sub two, then sub three of that. At four o'clock today, Committee on Transportations, Innovations Committee will be meeting.

[02:36:01] They're over in the House South subcommittee on the second floor. Also at 4 o'clock today, Health and Human Services, Social Services subcommittees meeting. They'll be in House Committee Room C on the second hall down the floor. And then Public Safety Firearms subcommittee is meeting at 4.30 in House North subcommittee room.

[02:36:21] So that's on the second floor. That's the last legislative meeting that I'm aware of. Looking for today, looking ahead to tomorrow, Friday, end of the week. February 6th. The first meeting it seems to be will be public safety subcommittee number three yeah so subcommittee number three will be at 7 a.m. and House Committee Room A in the lower level and then at eight o'clock the full committee of public safety will meet so that's at seven for the sub and then the full

[02:36:55] committee at eight. At eight o'clock tomorrow the privileges and elections voting rights subcommittee I think that was moved over to Friday earlier in the week but they'll be in House committee room C and then that's at 8 o'clock then at 9:30 the privilege election the full committee will be meeting in that same room on the second floor House committee room C at 9 o'clock just going back in time slightly county cities and town committee on county cities and towns will be meeting in House committee room B which is on the second floor of course over in the GAB, and then finally the two caucuses will meet. I understand

[02:37:35] we're going in at 11 tomorrow, so the Republican and Democratic caucuses will be meeting beforehand and the times will be updated accordingly, but the Democratic caucus will meet probably around 10 or so in House Committee Room 1, and the Republicans will meet at 10 in House Committee Room, excuse me, House Room 2 here in the Capitol. We will update that accordingly. Mr. Speaker, that's all the announcements I have on this Thursday.

[02:38:00] Delegate McNamara. Thank you, Mr. Speaker, I'd like to return to the fourth morning hour for a brief point of personal privilege. That's out of order. You're going to have to do it tomorrow. Delegate from Fairfax, Delegate Sebo. Thank you, Mr. Speaker.

[02:38:15] Mr. Speaker, may we return to the first morning hour for the purpose of an introduction? No, we're leaving. The delegate from Alexander, Delegate Heron. It's been a long day. We have a whole lot of committee meetings. Thank you. Mr. Speaker, I move that when the House adjourned today, adjourned to reconvene tomorrow at 11 a.m.

[02:38:32] Delegate from Alexander, Delegate Heron moves up when the House adjourned today, adjourned to reconvene tomorrow at 11 a.m. As many in favor, the motion will say aye. Those opposed, no.

The motion is agreed to. The Delegate from Alexander, Delegate Herring. Mr. Speaker, I move that the House do now adjourn. Delegate from Alexander, Delegate Herring moves that the House do now adjourn. As many in favor, the motion will say aye. Those opposed, no.

[02:38:48] The motion is agreed to. The House is adjourned until tomorrow at 11 a.m.

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